

A. PATENT LAW

1. Patents Act, 1970

Main Indian law governing patents.

2. Section 2(1)(j) — Invention

Defines what constitutes an invention: a **new product or process involving an inventive step and capable of industrial application**.

3. Section 2(1)(ja) — Inventive Step

An invention must involve a technical advance/economic significance and not be obvious to a skilled person.

4. Section 2(1)(l) — New Manufacture

Relevant when determining whether something qualifies as a new manufactured product/process.

5. Section 3 — What are not inventions

Contains the major exclusions from patentability.

6. Section 3(c) — Natural Discoveries

Mere discovery of a scientific principle or naturally occurring substance is not an invention.

Ayurveda connection: You cannot simply discover a naturally occurring medicinal substance and automatically patent the discovery.

7. Section 3(d) — Known Substance

Important for new forms, properties and uses of known substances.

Memorize:

3(d) → known substance/new use issue.

8. Section 3(e) — Mere Admixture

A mere aggregation of known properties of components may not qualify as an invention.

9. Section 3(h) — Agriculture/Horticulture

Certain methods of agriculture or horticulture are excluded.

10. Section 3(i) — Treatment Methods

Certain medicinal, surgical, curative, prophylactic, diagnostic and therapeutic treatment processes are excluded.

Memorize:

3(i) → treatment method.

11. Section 3(j) — Plants & Animals

Plants/animals and essentially biological processes are subject to the statutory exclusion, with the specified microorganism exception.

Memorize:

3(j) → biological subject matter.

12. Section 3(k) — Computer Programme Per Se

Computer programs per se, mathematical methods and business methods are excluded from patentability.

Important because your project itself uses AI/software.

13. Section 3(p) — Traditional Knowledge

Extremely important for IP-SAKTI.

An invention that is essentially traditional knowledge, or merely aggregates/duplicates known properties of traditionally known components, is excluded.

Memorize:

3(p) → Traditional Knowledge.

14. Section 4 — Atomic Energy

Certain inventions relating to atomic energy are excluded.

Low priority for your project, but useful as a patent-law concept.

15. Section 6 — Persons Entitled to Apply

Specifies who can apply for a patent.

16. Section 7 — Form of Application

Deals with patent applications.

17. Section 8 — Foreign Applications

Applicants may have obligations concerning corresponding foreign applications.

This becomes relevant to your **international jurisdiction module**.

18. Section 9 — Provisional & Complete Specification

Important when explaining patent filing stages.

19. Section 10 — Contents of Specification

Deals with what a patent specification should contain.

20. Section 11 — Priority Dates

Important for understanding patent priority.